

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

DELORES ROSS, (by her mother and next
friend, Mary Alice Benjamin,

Plaintiff,

and UNITED STATES OF AMERICA,

Plaintiff-Intervenor,

and NARCISO RODRIGUEZ, JR., a minor, by
Josephine C. Rodriguez, his parent and next
friend; RACHAEL GODINEZ, a minor, by
Dolores Godinez, her parent and next friend;
ROY and LINDA DIAZ, minors, by Mike Diaz,
their parent and next friend; MINERVA
ANASTASIA RIVERA, a minor, by Josephine
Perez, her parent and next friend; TAMMY and
JOEL REYES, minors, by David M. Reyes,
their parent and next friend; ELIAS SORIA, a
minor, by Joseph G. Soria, his parent and next
friend; DANIEL and ELOISA MEZA, minors, by
Isidoro Meza, their parent and next friend;
SYLVIA GUZMAN, a minor, by Gabriel Guzman,
her parent and next friend; ANDY GONZALEZ,
a minor, by A. Gonzalez, his parent and next
friend; OSCAR SALDANA, a minor, by
Agustine Saldana, his parent and next friend;
and MOISES MANSILLAS, JR., a minor, by
Moises Mansillas, his parent and next friend, and
all others similarly situated,

Plaintiffs-Intervenors,

vs.

ROBERT Y. ECKELS, as President of the
Houston Independent School Board of Trustees,
et al.,

Defendants.

C. A. NO. 10,144

MOTION TO INTERVENE
AS PARTY PLAINTIFFS

Narciso Rodriguez, Jr., a minor, by Josephine C. Rodriguez, his
parent and next friend, additional named applicants so listed in Exhibit "A"
of the attached complaint, and others similarly situated as a class respect-
fully move this Court for leave to intervene as plaintiffs in this action
against Robert Y. Eckels, President of the Houston Independent School
District Board of Trustees, and the remaining members of the Board of

Trustees as named in the Complaint originally filed in this action, set forth in applicants' proposed complaint, a copy of which is attached hereto.

Applicants move this Court to intervene as of right pursuant to Rule 24(a)(2) of the Federal Rules of Civil Procedure as applicants have an interest in the transaction which is the subject matter of the pending action, and the applicants are so situated that the disposition of the action may as a practical matter impede applicants' ability to protect that interest. Specifically, applicants wish to assert their constitutional rights to equal educational opportunities as guaranteed them by the Civil Rights Act of 1964 and the Equal Protection Clause of the Fourteenth Amendment to the United States Constitution. Plaintiffs maintain that the current plan for desegregation of the Houston Independent School District does not consider the Mexican-American school children as a distinct and separate identifiable minority group for purposes of implementing a plan of integration consistent with the requirements of the United States Constitution and the Civil Rights Act of 1964. The current desegregation plan, wherein predominately Black and Mexican-American schools are paired, does not result in an integration of minority (Black and Brown) school children with the Anglo school children in the District. As the Complaint in the original action seeks only to desegregate the schools operated by defendants (as to the Anglo and Black students only) and not to require the defendants to provide Mexican-American children with special programs designed to provide them with equal educational opportunities, or to establish integration of Mexican-American and Anglo students; applicants sincerely feel that their interest is not being protected and is not adequately being represented by the existing parties to this lawsuit.

Alternatively, applicants move this Court pursuant to Rule 24(b)(2) of the Federal Rules of Civil Procedure to intervene in this action on the ground that applicants' claim and the pending action have questions of law and fact which are common to each other. Specifically, applicants' claim relates to the implementation of a comprehensive plan for the operation of the Houston Independent School District involving both desegregation and the

institution of programs aimed at providing the Mexican-American children with equal educational opportunities, while the claims of the other parties as plaintiffs also relate to the desegregation and the provision of equal educational opportunities.

The participation of applicants as intervenors to this action will in no way delay or prejudice the adjudication of the rights of the original parties.

WHEREFORE, for the reasons stated above, applicants for intervention respectfully request that this motion be granted.

Respectfully submitted,

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Attorneys for Plaintiffs-Intervenors

CERTIFICATE OF SERVICE

Pursuant to Rule 5(b) of the Federal Rules of Civil Procedure, this is to certify that a copy of the foregoing Motion to Intervene, Notice of Hearing, Complaint in Intervention, and Memorandum of Law, have been served on plaintiff, Delores Ross, by her mother and next friend, Mary Alice Benjamin, by sending copies by United States Certified Mail, return receipt requested, to their attorney of record, Mr. Conrad Harper, 10 Columbus Circle, New York, New York 10019; on plaintiff-intervenor, United States of America, Attorney General John Mitchell, United States Department of Justice, Washington,

D. C., and Tony Ferris, United States Attorney; and on defendant Robert Y. Eckels and the Houston Independent School District, by their attorneys of record.

Signed this _____ day of September, 1970.

ABRAHAM RAMIREZ, JR.